

The Political Economy of Locally-Funded Public Defenders

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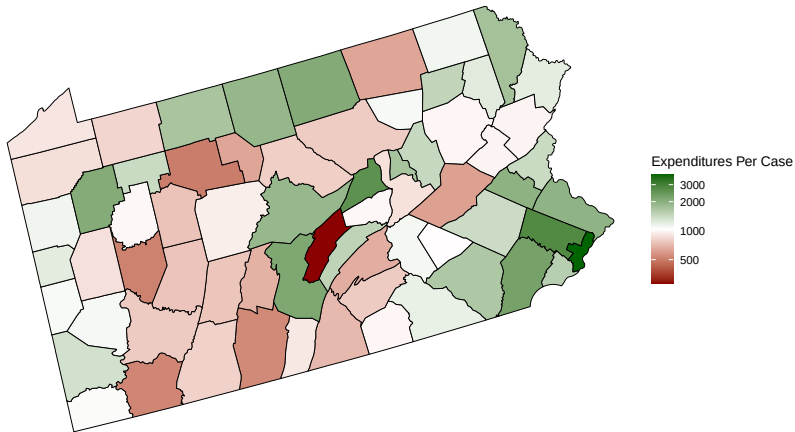
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Timeline: Indigent Representation

- 1963: *Gideon v. Wainwright* decided
- 1968: Pennsylvania Constitution amended to require county-level public defenders; enacts PA Public Defender Act (16 PA §9960.1 - 9960.13)
- 1972: *Argersinger v. Hamlin* extends the *Gideon* right to all crimes for which imprisonment is a possible penalty; PA adopts Rule 122
- 2003: "Pennsylvania is generally not fulfilling its obligation to provide adequate, independent defense counsel to indigent persons."
—*The Final Report of the Pennsylvania Supreme Court Committee on Racial and Gender Bias in the Judicial System*
- 2017: Pennsylvania becomes the last state with a legislatively-mandated public defender system to fund public defender offices solely through local (county) revenues

Public Defender Spending, 2020 (Dollars per Case)



Source: *Pennsylvania Indigent Criminal Defense Services Funding and Caseloads*, Report of the Pennsylvania Legislative Budget and Finance Committee (2021).

Public Defenders: Existing Research

- Development / evolution of public defense services (Davies and Worden 2009; Worden, Davies, and Brown 2011; Shem-Tov 2022)
- Extensive research on public defenders' relative effectiveness (e.g., Grier 1971; Hermann, Single, and Boston 1977; Katz 1982; Worden 1991, 1993; Cohen 2014; Agan, Freedman, and Owens 2021; Quintana-Navarrete and Fondevila 2023)
- In Pennsylvania: Legislative reports in 2003, 2011, and 2021.
- **Q: What drives support for public defense services?**

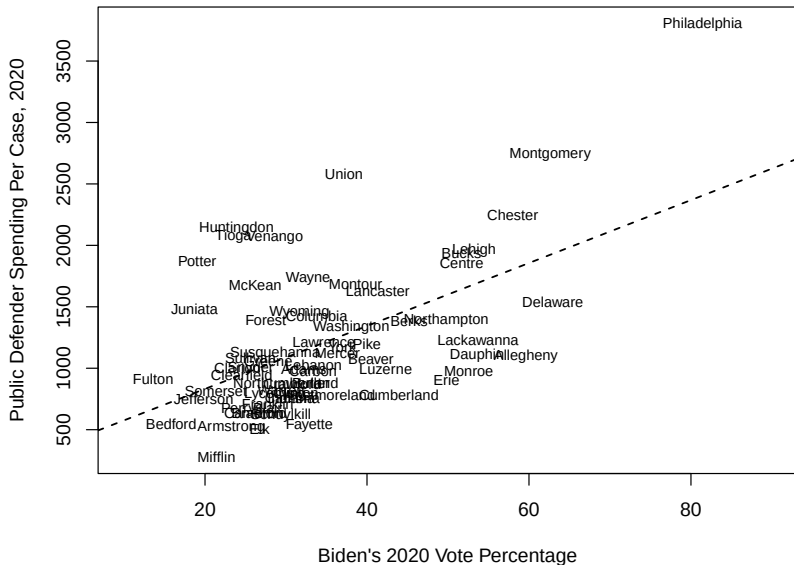
Worden and Worden (1989):

- Roots in Peterson's (1981) *City Limits*: classic *redistributive* policy
- Primary influences: fiscal capacity + need
- Little room for political factors / ideological responsiveness
- Findings: large effects of caseload; small-moderate influence for wealth + ideology

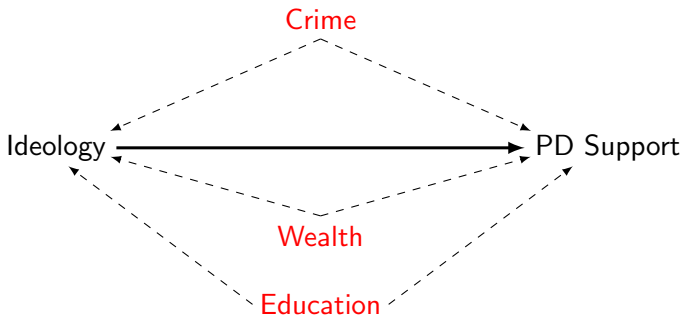
Davies and Worden (2017):

- Similar influence of caseloads, revenues, and inequality
- **No** association with ideology or racial/ethnic diversity

PD Support and Presidential Vote, 2020



Political Responsiveness in PD Spending



Note: Red indicates potential confounders.

County-level data on Pennsylvania ($N = 67$):

- Outcome: **Spending on public defender services, in dollars (logged)**
[source: "Pennsylvania Indigent Criminal Defense Services Funding and Caseloads" (2021)]
- Predictors / controls:
 - **Biden's percentage of the two-party 2020 general election vote**
(source: PA Secretary of State)
 - **Violent crimes per 1,000,000 population** (source: FBI *Uniform Crime Reports*)
 - **Percentage of the population living in poverty** (source: U.S. Census Bureau)
 - **Percentage of the population holding a bachelor's degree or higher**
(source: U.S. Census Bureau)
 - **Number of cases** handled by the office (logged) [source: "Pennsylvania Indigent Criminal Defense Services Funding and Caseloads" (2021)]

Table 1: Correlates of Public Defender Spending in Pennsylvania, 2020

	Model 1	Model 2
(Intercept)	11.121*** (0.630)	7.487*** (0.399)
Violent Crime Rate	0.618* (0.277)	0.240+ (0.137)
Percent in Poverty	-0.389 (0.257)	-0.085 (0.127)
Percent with Bachelors Degree	0.382 (0.399)	0.284 (0.194)
Biden's 2020 Vote Share	1.494*** (0.417)	0.549* (0.213)
ln(Cases Disposed)		0.744*** (0.052)
Num.Obs.	67	67
R2	0.715	0.934
R2 Adj.	0.697	0.928

+ $p < 0.1$, * $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$

Public Defense in PA: History, Determinants, and Consequences

- Theory: Political responsiveness in public goods provision
- General approach: Descriptive, mixed-method
- Quantitative data:
 - Public defense mechanism, caseloads, expenditures, salaries, staffing, etc.
 - County-level measures: wealth, taxation, crime, political ideology, other demographics
 - Criminal outcomes: plea bargaining, sentencing, differential impacts
 - Cross-state comparisons (institutions + outcomes)
- Qualitative data: Open-ended interviews with (currently) eight chief public defenders
- Goal: Inform policy decisions regarding public defense in PA

